

25SMCV04152 25SMCV04152

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 25SMCV04152 Hearing Date: June 26, 2026 Dept: M

CASE NAME: Theisen, v. Ridgeline

Construction Group

CASE NO.: 25SMCV04152

MOTION: Motion

to Compel Further

HEARING DATE: 6/26/2026

Legal

Standard

In

the absence of contrary court order, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010; see *Davies v. Superior Court* (1984) 36 Cal.3d 291, 301.) Section 2017.020(a) vests the Court with authority to limit the scope of discovery if the burden, expense, or intrusiveness of the discovery sought "clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." CCP § 2019.030 directs the Court to consider the needs of the case, amount in controversy, and the importance of the issues at stake in the litigation, and to consider whether the discovery being sought is unreasonably cumulative or duplicative, or is obtainable by a more convenient or less expensive or less burdensome way, when deciding whether to

restrict the frequency of extent of use of an authorized discovery method.

On receipt of a response to requests for admission the propounding party may move for an order compelling a further response if the propounding party deems that an objection to an RFA is without merit or too general. (CCP § 2033.290(a)(2).)

Analysis

Plaintiff Michelle Theisen moves for an order compelling Defendant Ridgeline Construction Group to further respond to her Requests for Admission ("RFA"), Set One. Plaintiff seeks monetary sanctions of \$1,262.00.

Defendant contends that the motion is moot based on the parties' meet and confer agreement. In reply, Plaintiff accepts the motion is substantively moot. The only issue remaining is sanctions. The record demonstrates that Plaintiff appropriately brought the instant motion. Defendant does not present any substantial justification for the initial responses or that other circumstances make the imposition of the sanction unjust. Thus, the Court is inclined to impose the modest sanctions noticed.

Accordingly, the motion is MOOT. Sanctions are imposed in the noticed amount of \$1,262.00 against Defendant and Defendant's counsel of record, jointly and severally. Sanctions are to be paid within 30 days.